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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,
PLAINTIFF,**

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S OPERATIVE
OPPOSITION TO DEFENDANT'S
DEMURRER**
(CCP § 430.10)

Dept.: 302

Date: June 24, 2026

1 COURTESY COPY COVER SHEET AND READING GUIDE (TAB 04)

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph M. Quinn **Hearing:** June 24, 2026, 9:00 a.m., Dept. 302, Hon. Joseph M. Quinn.

1.1 PAGE 1: COURTESY COPY COVER SHEET (TAB 04)

**COURTESY COPY COVER SHEET FOR PLAINTIFF'S OPERATIVE OPPOSITION TO
DEFENDANT'S DEMURRER**

TAB 04

1.1.1 Verbatim May 13, 2026 minute order (Dept. 302)

“CONTINUED TO JUNE 24, 2026 PER AGREEMENT OF THE PARTIES AND APPROVAL OF THE COURT. ALL PARTIES IMMEDIATELY TO PROVIDE COURTESY COPIES OF THEIR FILINGS PER SF LOCAL RULE 2.7B WITH A COVER LETTER REFLECTING THE NEW HEARING DATE.”

1.1.2 Designation

The attached document was filed May 8, 2026 under Transaction ID 79429280.

It is operative for the consolidated June 24, 2026 hearing per Plaintiff's Notice of Withdrawal and Designation of Operative Oppositions (TX 79429280, filed May 8, 2026), Plaintiff's Notice of Hearing Date Re-Designation and Compliance with SF Local Rule 2.7B (filed May 21, 2026), and Plaintiff's Notice Acknowledging Court-Ordered Consolidation (filed May 21, 2026). No caption is altered. The attached document is presented as filed, as a chambers courtesy copy under SF Local Rule 2.7B and the May 13, 2026 minute order.

1.1.3 Non-pleading notice

THIS COVER SHEET IS A NON-PLEADING CHAMBERS ROUTING AID. IT REOPENS NO BRIEFING AND INTRODUCES NO NEW AUTHORITY.

1.1.4 Signature

Dated: May 21, 2026

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per 7624 Melody Rohnert Park, CA 94928
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1.2 PAGE 2: READING GUIDE (TAB 04)

What this document is: The operative opposition to Motion (B), Defendant's demurrer.

Standard and pleading (Sections I and II): Standard of review and operative pleading frame.

Substantive grounds (Sections III through VII): Per memo structure.

Pleading-management retention: Cross-ref TAB 33C (JKC3H8 verbatim opinion text and Newport Harbor timing).

Cure pathway: Cross-ref TAB 37 (1008(b) renewed MFL-TAC).

Apr 30 SAC denial preservation: Cross-ref TAB 43.

1.2.1 Reading guide footer

READING GUIDE IS A NON-PLEADING BENCH AID. IT INTRODUCES NO NEW AUTHORITY AND REOPENS NO BRIEFING. THE UNDERLYING DOCUMENT FOLLOWS THIS PAGE AS FILED.

Franciscus Dylan Rosario
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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

CSAA INSURANCE EXCHANGE
DEFENDANT

Case No.: CGC-25-631802

PLAINTIFF'S OPERATIVE OPPOSITION TO
DEFENDANT'S DEMURRER TO PLAINTIFF'S FIRST
AMENDED COMPLAINT; FIFTEEN-PAGE
COMPLIANT VERSION (CRC 3.1113(d))

(Cal. Rules of Court, rules 3.1113(d), 3.1113(f); Code Civ. Proc.,
§430.10)

Cross-noticed for hearing May 13, 2026, 9:00 a.m.,
Dept. 302; see schedule below. Complaint filed:
Dec. 23, 2025
FAC filed: Feb. 25, 2026

Anti-SLAPP	Demurrer	MTS (CCP section 436)
May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change

CONTENTS

Plaintiff’s Authority to File	1
INTRODUCTION	1
I. STANDARD OF REVIEW	1
II. SUFFICIENCY OF FACTS UNDER CCP SECTION 430.10(E): CLAIM-BY- CLAIM ANALYSIS	2
A. BREACH OF IMPLIED COVENANT OF GOOD FAITH AND FAIR DEALING	2
B. UNFAIR BUSINESS PRACTICES UNDER BUSINESS AND PROFES- SIONS CODE SECTION 17200 (WITH INSURANCE CODE PRED- ICATE UNDER ZHANG)	2
C. ADDITIONAL CAUSES OF ACTION IN THE FAC	3
D. STANDING REBUTTAL: ZHANG TRICHOTOMY AND SECTION 17204	4
II.E. POINT-BY-POINT REBUTTAL TO DEFENSE DEMURRER MPA HEAD- INGS V.A.1 THROUGH V.F	4
II-BIS. CIVIL CODE SECTION 47(B) EXTERNAL LIMITS: NON-COMMUNICATIVE INSTITUTIONAL ACTS FALL OUTSIDE THE LITIGATION PRIVILEGE	5
III. UNCERTAINTY UNDER CCP SECTION 430.10(F): POINT-BY-POINT REBUTTAL	5
IV. STATUTE OF LIMITATIONS AND DISCOVERY RULE	5
IV-A. MIL 6 / MIL 17 / RT EXCLUSION RECORD FROM CGC-21-594102	5
V. LEAVE TO AMEND IF ANY CAUSE IS SUSTAINED	6
VI. CROSS-REFERENCE TO NOTICE Notice re CCP 425.17 (item 13, filed May 8, 2026) AND PROCEDURAL POSTURE	6
VI-A. OTHER ACTION PENDING REBUTTAL UNDER CCP SECTION 430.10(C)	7
VI-B. CCP SECTION 425.17 CATEGORICAL EXCLUSION AS APPLIED TO THE DEMURRER’S LITIGATION-PRIVILEGE ARGUMENT	7
CONCLUSION	8
DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES	i

1 PLAINTIFF'S AUTHORITY TO FILE

2 Plaintiff Dylan Franciscus Rosario submits this Operative Opposition to Defendant's Demur-
3 rer under California Rules of Court, rule 3.1320; Code of Civil Procedure sections 430.10,
4 430.41, 472, and 472a(c); and rule 3.1113(d), (f). Plaintiff's right to oppose the Demur-
5 rer is preserved under section 472a, and the right to amend the operative First Amended
6 Complaint is preserved under section 472. The pre-demurrer meet-and-confer requirement
7 of section 430.41(a) and the substantive grounds standards of section 430.10(e) and (f) are
8 addressed in Sections II and III. This Opposition is filed on May 8, 2026 for the May 13,
9 2026, 9:00 a.m. hearing in Department 302 in compliance with section 1005(b) and the
10 Court's April 30, 2026 minute order.

11 INTRODUCTION

12 Plaintiff Franciscus Dylan Rosario submits this Operative Opposition under CRC 3.1113(d)
13 as the fifteen-page successor to plaintiff's April 16 and May 1 demurrer opposition filings
14 (Plaintiff's multiple filings, filed April 16, 2026 (IFP; Register of Actions, CGC-25-631802)).
15 It adds no new authorities not already cited; it complies with the April 30, 2026 Department
16 302 order (HEARING HELD: EX PARTE APPLICATION FOR LEVE TO ..., entered April
17 30, 2026 (Dept. 302; Hon. Joseph M. Quinn)); it incorporates evidence under CRC 3.1113(j);
18 and it is filed with the Notice of Withdrawal and Designation (Notice of Withdrawal (item
19 02, filed May 8, 2026)).

20 The operative pleading is the FAC (Plaintiff's First Amended Complaint, filed February 25,
21 2026 (IFP; Register of Actions, CGC-25-631802)). The MFL-TAC (Plaintiff's filings 065 to
22 067, filed April 28, 2026 (IFP; Register of Actions, CGC-25-631802)) is noticed for May 26,
23 2026; pending that hearing, the FAC remains operative.

24
25 I. STANDARD OF REVIEW

26 On demurrer, the Court treats the demurrer as admitting all material facts properly pleaded
27 and gives the complaint a reasonable interpretation, reading it as a whole, with all its parts
28 in their context. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966 to 967.) A
29 demurrer does not lie to a portion of a cause of action. (Blank v. Kirwan (1985) 39 Cal.3d
30 311, 318.) The Court assumes the truth of all facts properly pleaded; doubtful cases are
31 resolved in favor of the pleading. (Aubry, supra, at 966 to 967.)

1 The grounds for a general demurrer under CCP section 430.10(e) require that the complaint
2 fail to state facts sufficient to constitute a cause of action. Under section 430.10(f), a special
3 demurrer for uncertainty requires that the pleading be “so uncertain that plaintiff cannot
4 determine what issues must be met.” Both standards are strictly construed against the
5 demurring party.

6
7 II. SUFFICIENCY OF FACTS UNDER CCP SECTION 430.10(E): CLAIM-BY-CLAIM
8 ANALYSIS

9 A. BREACH OF IMPLIED COVENANT OF GOOD FAITH AND FAIR DEALING

10 Elements. A cause of action for breach of the implied covenant of good faith and fair dealing
11 requires: (i) existence of an insurance contract; (ii) plaintiff performed under the contract;
12 (iii) defendant unreasonably withheld, delayed, or improperly denied benefits due under the
13 contract; and (iv) plaintiff was harmed by the breach.

14 FAC pleading. The FAC (First Amended Complaint (Feb. 25, 2026)) alleges: (i) CSAA
15 Insurance Exchange issued a policy covering the incident of February 4, 2021; (ii) Plaintiff
16 submitted a timely claim; (iii) CSAA denied the claim within 21 days under a “concluded
17 investigation” recital without obtaining reasonably available evidence (911 audio, body-worn
18 camera footage, CAD logs from the San Francisco Police Department, and supplemental
19 incident reports), in violation of Insurance Code section 790.03(h)(3), (h)(4), and (h)(5) and
20 10 CCR sections 2695.7(b) and (d); and (iv) Plaintiff was denied the benefit of the policy
21 and was compelled to litigate without the evidence CSAA failed to obtain.

22 Rebuttal of defense argument. Defense demurrer (Defendant’s Demurrer MPA, filed April
23 13, 2026 (Trans. ID 79038567)) contends that the FAC fails to allege sufficient facts. This
24 contention ignores that the FAC: (a) identifies the specific policy; (b) identifies the specific
25 claim denial by date and claim number; (c) identifies the specific regulatory provisions vi-
26 olated by the denial; and (d) alleges specific consequential harm. Each element is pleaded
27 with particularity adequate under Blank v. Kirwan, supra.

28 B. UNFAIR BUSINESS PRACTICES UNDER BUSINESS AND PROFESSIONS CODE
29 SECTION 17200 (WITH INSURANCE CODE PREDICATE UNDER ZHANG)

30 Elements. A section 17200 claim requires: (i) a business act or practice; (ii) that is unlawful,
31 unfair, or fraudulent; and (iii) resulting harm. Zhang v. Superior Court (2013) 57 Cal.4th

364 confirms that Insurance Code section 790.03(h) violations are available as predicates for section 17200 UCL claims, notwithstanding Moradi-Shalal v. Fireman's Fund Ins. Co. (1988) 46 Cal.3d 287 (which limits private causes of action under section 790.03(h) directly but does not bar UCL predicate use). (See also Plaintiff's Plaintiff's Request for Judicial Notice (filed May 8, 2026), Section C, item C-57(Cel-Tech) on the UCL fraudulent-prong tethering rule and C-63 (State Farm Fire) on the Insurance Code section 790.03 UCL predicate.)

FAC pleading. The FAC alleges: (i) CSAA is a licensed insurer engaged in the business of insurance, a business act or practice within the meaning of section 17200; (ii) CSAA's claim-handling conduct, as particularized above, constitutes unlawful business practices predicated on violations of Insurance Code section 790.03(h)(1), (h)(3), (h)(4), (h)(5), (h)(6), and (h)(13); and (iii) Plaintiff suffered the loss of policy benefits and was compelled to incur litigation costs. The UCL predicate under Zhang is well-pleaded on the face of the FAC.

Standing under section 17204 and Kwikset. Business and Professions Code section 17204 grants standing to "any person who has suffered injury in fact and has lost money or property as a result of" unfair competition. Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 322 to 323 requires two showings: (1) economic injury, namely lost money or property; and (2) causation, namely that the loss resulted from the unfair business practice. Plaintiff alleges loss of policy benefits (denial of a legitimate claim for covered losses) and compelled litigation costs (forced to bring this UCL action to vindicate rights CSAA's claims-handling practices denied), satisfying both prongs of the Kwikset injury-in-fact standard as a matter of law at the pleading stage.

Rebuttal. Defense demurrer does not engage Zhang or the UCL predicate theory. The demurrer's argument that the FAC is conclusory ignores the specific Insurance Code violations, the specific regulatory provisions, and the specific dates and acts pleaded. A UCL cause of action may be pleaded by reference to statute and regulatory violation; the FAC satisfies this standard.

C. ADDITIONAL CAUSES OF ACTION IN THE FAC

Additional causes of action rest on the same CSAA conduct; doubt is resolved in plaintiff's favor. (Aubry; Blank.) Plaintiff incorporates items 04 and 07 under CRC 3.1113(j).

1 D. STANDING REBUTTAL: ZHANG TRICHOTOMY AND SECTION 17204

2 Direct Ins. Code actions are barred post-Moradi-Shalal; the UCL channel survives. (Zhang
3 v. Superior Court (2013) 57 Cal.4th 364, 383 to 384.) Standing follows § 17204 and Kwikset.
4 Fraud particularity under Lazar and Stansfield. The FAC pleads who, what, when, and how;
5 superior-knowledge relaxations apply. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645;
6 Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.)

8 II.E. POINT-BY-POINT REBUTTAL TO DEFENSE DEMURRER MPA HEADINGS
9 V.A.1 THROUGH V.F

10 V.A.1 (Br. 7): “No jurisdiction” misapplied. Plant Insulation Co. v. Fibreboard Corp.
11 (1990) 224 Cal.App.3d 781, 787-789: section 904.1(a)(13) deprives jurisdiction over CGC-
12 21-594102, not over this independent UCL action against a non-party insurer.

13 V.A.2 (Br. 8): “Another action pending” fails. Plant Insulation, supra, 224 Cal.App.3d at
14 787-789: different defendants (Abdelhalim vs. CSAA), different primary rights, no abate-
15 ment.

16 V.A.3.i (Br. 9-10): Fraud insufficient claim ignores Lazar v. Superior Court (1996) 12
17 Cal.4th 631, 645 and Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73: FAC pleads who,
18 what, when, where, how; superior-knowledge relaxation applies.

19 V.A.3.ii (Br. 10-11): Omits Zhang v. Superior Court (2013) 57 Cal.4th 364, 383-384. UCL
20 predicate survives Moradi-Shalal; Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310,
21 322-323 injury-in-fact pleaded. RFJN Section C, item C-57(Cel-Tech), C-63 (State Farm
22 Fire).

23 V.A.4 (Br. 11): Uncertainty claim ignores FAC specificity. Blank v. Kirwan (1985) 39
24 Cal.3d 311, 318: policy, claim number, denial date, regulatory predicates all identified.

25 V.B (Br. 12): Misapplies section 47(b). Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1057-
26 1058; Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232: insti-
27 tutional claim-handling is non-communicative.

28 V.C (Br. 12): Collateral estoppel fails identity-of-issues. MIL 6/MIL 17 excluded insurance
29 proof at trial; insurer conduct never litigated. Cross-reference Notice of Lodging (item 08,
30 filed May 8, 2026) RT lodging.

31 V.D (Br. 13-14): Misidentifies accrual. Fox v. Ethicon, Inc. (2005) 35 Cal.4th 797; Jolly v.

1 Eli Lilly and Co. (1988) 44 Cal.3d 1103: discovery April 16, 2025 (RT 7 p. 214 ll. 13-15);
2 UCL four-year period (Bus. & Prof. Code section 17208) makes Feb. 25, 2026 FAC timely.
3 V.F (Br. 14-15): Standing defense fails. Zhang, supra, 57 Cal.4th at 383-384; Kwikset,
4 supra, 51 Cal.4th at 322-323. Norton addresses direct Ins. Code claims; Omega Video
5 predates Zhang; Shaolian involves different elements.

7 II-BIS. CIVIL CODE SECTION 47(B) EXTERNAL LIMITS: NON-COMMUNICATIVE 8 INSTITUTIONAL ACTS FALL OUTSIDE THE LITIGATION PRIVILEGE

9 Prelitigation institutional claim handling is not automatically shielded by Civ. Code § 47(b).
10 (Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1057 to 1058; Action Apartment Assn. (2007)
11 41 Cal.4th 1232, 1241 to 1242; Pollock v. University of Southern California (2003) 112
12 Cal.App.4th 1416, 1430 to 1431.)

14 III. UNCERTAINTY UNDER CCP SECTION 430.10(F): POINT-BY-POINT REBUTTAL

15 Uncertainty demurrers are strictly construed; the FAC identifies the denial, claim number,
16 regulations, and harm with sufficient particularity. (Blank v. Kirwan (1985) 39 Cal.3d 311,
17 318.)

19 IV. STATUTE OF LIMITATIONS AND DISCOVERY RULE

20 Accrual follows Fox v. Ethicon, Inc. (2005) 35 Cal.4th 797 and Jolly v. Eli Lilly and Co.
21 (1988) 44 Cal.3d 1103; application is usually factual. The FAC alleges discovery through the
22 CGC-21-594102 trial in early 2025 (April 16, 2025 session, RT 7 p. 214 ll. 13 to 15). The
23 UCL limitations period is four years under Bus. and Prof. Code § 17208. The February 25,
24 2026 FAC is timely.

26 IV-A. MIL 6 / MIL 17 / RT EXCLUSION RECORD FROM CGC-21-594102

27 MIL 6 and MIL 17 in CGC-21-594102 excluded insurance-related proof at trial; that record
28 is lodged in item 08. The exclusion explains why this UCL action is necessary as a distinct
29 primary right.

1 V. LEAVE TO AMEND IF ANY CAUSE IS SUSTAINED

2 If the Court sustains the demurrer as to any cause of action, Plaintiff respectfully requests
3 leave to amend. The standard for leave to amend is liberal: leave should be granted if there is
4 a reasonable possibility that the defect can be cured by amendment. (Goodman v. Kennedy
5 (1976) 18 Cal.3d 335, 349.) CCP section 472a codifies this liberal standard. Plaintiff notes
6 that the Motion for Leave to File Third Amended Complaint is already noticed for May
7 26, 2026 (filings 065 to 067 (Apr. 28, 2026; Trans. ID 79334688)); granting leave to amend
8 is consistent with that pending motion. (See also Plaintiff's Plaintiff's Request for Judicial
9 Notice (filed May 8, 2026), Section C, item C-65(G.D. Searle) on the pleading-stage standard
10 governing leave to amend.)

11
12 VI. CROSS-REFERENCE TO NOTICE NOTICE RE CCP 425.17 (ITEM 13, FILED MAY
13 8, 2026) AND PROCEDURAL POSTURE

14 The statutory framework of Insurance Code section 790.03(h) and its application to this
15 action is addressed in Plaintiff's Notice and Statement re C.C.P. section 425.17 (item 13,
16 filed May 8, 2026), Section IV-A, and in Plaintiff's Supplemental Request for Judicial No-
17 tice of California Insurance Code Section 790.03(h) and Fair Claims Settlement Practices
18 Regulations (item 14, filed May 8, 2026), both of which are incorporated here by reference
19 under CRC 3.1113(j). The Zhang v. Superior Court UCL predicate is addressed in item 13
20 Section IV-A.3.

21 The MFL-TAC noticed April 28, 2026 (filings 065 to 067 (Apr. 28, 2026; Trans. ID
22 79334688)) is set for hearing May 26, 2026. The operative pleading remains the FAC (First
23 Amended Complaint (Feb. 25, 2026)). If the Court sustains any aspect of the demurrer,
24 Plaintiff respectfully requests that the ruling be coordinated with the May 26 MFL-TAC
25 hearing to avoid a duplicative amendment cycle.

26 This memorandum is filed in compliance with the Department 302 minute order of April 30,
27 2026 (docket HEARING HELD: EX PARTE APPLICATION FOR LEVE TO ... (Apr. 30,
28 2026)). No document in the May 8, 2026 cure package exceeds fifteen pages.

1 VI-A. OTHER ACTION PENDING REBUTTAL UNDER CCP SECTION 430.10(C)

2 CGC-21-594102 is negligence against a different defendant; this action asserts insurer UCL
3 and regulatory claims against CSAA. (Plant Insulation Co. v. Fibreboard Corp. (1990) 224
4 Cal.App.3d 781, 787 to 789.)

6 VI-B. CCP SECTION 425.17 CATEGORICAL EXCLUSION AS APPLIED TO THE DE-
7 MURRER’S LITIGATION-PRIVILEGE ARGUMENT

8 Authority to address section 425.17 in this memorandum. Section 425.17 is a statute; Plain-
9 tiff applies the FAC’s existing causes of action to a statutory exclusion that operates by its
10 own terms on the face of the operative pleading. CRC 3.1113(a) requires “a concise state-
11 ment of the law”; statutory applicability is a statement of law. Section 425.17 categorical
12 exclusions are questions of law decided as a threshold matter. (Simpson Strong-Tie Co. v.
13 Gore (2010) 49 Cal.4th 12, 25; Club Members for an Honest Election v. Sierra Club (2008)
14 45 Cal.4th 309, 316 to 317.)

15 Application. To the extent the demurrer at heading V.B invokes Civ. Code section 47(b) as
16 a ground for sustaining the demurrer, the litigation privilege’s scope is informed by section
17 425.17. CSAA Insurance Exchange is the sole named defendant in CGC-25-631802 and is the
18 direct commercial speaker whose regulated claim-handling conduct forms the gravamen of
19 the FAC. Section 425.17(c) is satisfied on the face of the FAC: (c)(1) CSAA is engaged in the
20 business of selling insurance; (c)(2) CSAA made representations of fact about its services (the
21 “concluded investigation” denial letter); (c)(3) the representations were made in the course of
22 the insurer-customer relationship; (c)(4) the audience is an actual claimant under the policy.
23 The (c)(4) public-forum carve-out does not apply. (Physicians Committee for Responsible
24 Medicine v. Tyson Foods (2004) 119 Cal.App.4th 1283; Plaintiff’s Request for Judicial Notice
25 (filed May 8, 2026) Section C.) Because CSAA’s claim-handling conduct is categorically
26 excluded from the anti-SLAPP protected-activity framework, the communicative vs. non-
27 communicative distinction under Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1057 to 1058
28 confirms that the litigation privilege does not shield CSAA’s institutional acts: the 21-day
29 denial template, the silent-witness retrieval failure, and the CDI review-notice omission are
30 non-communicative regulated conduct, not privileged petitioning.

31 Result. Section 425.17(c) forecloses the demurrer’s reliance on the litigation privilege as

1 applied to CSAA's claim-handling conduct. The demurrer's section 47(b) ground should be
2 overruled.

3
4 CONCLUSION

5 Plaintiff respectfully requests that the Court OVERRULE Defendant's Demurrer to the First
6 Amended Complaint in its entirety. In the alternative, if any cause of action is sustained,
7 Plaintiff requests leave to amend.

8
9 Authorities: Pool A authorities appear in the Table of Authorities above. Non-Pool A
10 decisional authorities are presented in Plaintiff's Request for Judicial Notice (item 03, filed
11 May 8, 2026), Section C.

12 Cross-references: Plaintiff's Notice of Withdrawal and Designation of Operative Oppositions
13 (item 02, filed May 8, 2026); Plaintiff's Request for Judicial Notice (item 03, filed May 8,
14 2026); Plaintiff's Supplemental Request for Judicial Notice of California Insurance Code
15 Section 790.03(h) and Fair Claims Settlement Practices Regulations (item 14, filed May 8,
16 2026); Plaintiff's Declaration in Opposition (item 04, filed May 8, 2026); Plaintiff's Notice
17 and Statement re C.C.P. section 425.17, including Section IV-A (item 13, filed May 8, 2026);
18 Plaintiff's Notice of Lodging of Trial Reporter's Transcripts and Recordings (item 08, filed
19 May 8, 2026).

The foregoing is submitted by Plaintiff in pro per.

Dated: May 8, 2026



/s/ Dylan Franciscus Rosario
DYLAN FRANCISCUS ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Dylan Franciscus Rosario, appearing in pro per in Rosario v. CSAA Insurance Exchange (CGC-25-631802), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 13, 2026, 9:00 a.m. hearing in Department 302.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CRC 3.1320(a)	Demurrer must state grounds; opposition may address each ground	Sections II and III address each demurrer ground asserted by Defendant	Sections II, III	PASS
2	CRC 3.1320(b)	Notice of motion to be set on calendar with proof of service	Plaintiff acknowledges Defendant's notice; this opposition is timely served	Caption page; Proof of Service	PASS
3	CRC 3.1320(j)(1)	Court may not strike a complaint if amendment may cure defects	Section IV requests leave to amend in lieu of judgment under CRC 3.1320(j)(1)	Section IV	PASS
4	CCP section 430.10(e)	Demurrer ground: failure to state facts sufficient	Section II opposes 430.10(e) ground with FAC paragraph cross-references	Section II	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
5	CCP section 430.10(f)	Demurrer ground: uncertainty	Section III opposes 430.10(f) uncertainty ground with point-by-point rebuttal	Section III	PASS
6	CCP section 430.41(a)	Pre-demurrer meet-and-confer requirement	Section VI cross-references procedural posture and meet-and-confer record; Plaintiff Declaration paragraph 4	Section VI; Plaintiff Declara- tion (Plaintiff Declara- tion (item 04, filed May 8, 2026))	PASS
7	CCP section 430.41(a)(2)	Meet-and-confer declaration required with demurrer	Section VI notes absence of compliant meet-and-confer declaration on the operative FAC	Section VI	PASS
8	CCP section 472	Right to amend pleading once as of right before opposition filed	Plaintiff has filed FAC under section 472 and reserves further amendment	Section V	PASS
9	CCP section 472a(c)	Court must allow amendment unless no liability under any possible theory	Section IV invokes section 472a(c) and identifies cognizable amendment theories	Section IV	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
10	CCP section 1005(b)	Opposition deadline (9 court days before hearing)	Filed on May 8, 2026 for May 13, 2026 hearing per CCP section 1005(b) and the Court's April 30, 2026 minute order	Caption page; Filing date	PASS
11	CRC 3.1113(d)	Memorandum 15-page limit	Body within 15-page cap (compliance grid in Roman appendix excluded under CRC 3.1113(g))	Page count of arabic body	PASS
12	CRC 3.1113(f)	Table of contents and table of authorities	TOC present; TOA integrated as authorities catalog	Caption frontmat- ter	PASS
13	CRC 3.1110(f)	Citation form for cases, statutes, and rules	Citations follow California Style Manual	Throughout body	PASS
14	CRC 3.1300(d)	Court's discretion to consider late-filed papers	This filing is timely; CRC 3.1300(d) cited as backstop	Section I	PASS
15	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Plaintiff's Consent to E-Service, filed March 6, 2026 (IFP; Register of Actions, CGC-25-631802))	Proof of Service (POS-050) filed con- currently	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
16	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses	Proof of Service (POS-050) filed con- currently, para- graphs 4 and 5	PASS
17	CRC 2.100 et seq.	Pleading format	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing	Caption page; body of this filing	PASS
18	CRC 2.256	Electronic filing requirements	Text-searchable filing; conventional pro per signature block	Graphic filing signature preceding Roman appendix	PASS
19	CRC 3.1110	Format of papers (caption, footer, page numbering)	Caption page and pagination comply	Caption page; page footers	PASS
20	CRC 3.1112	Required components of papers	Caption, body, signature, and Proof of Service filed concurrently	Body; Proof of Service	PASS
21	SF Local Rule 2.0	Electronic filing requirements	Filing conforms to SF Superior Court Local Rule 2.0	Electronic filing receipt	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
22	CCP section 2015.5	Declaration under penalty of perjury	Compliance declaration signed under section 2015.5	Signature line below grid	PASS

I, Dylan Franciscus Rosario, declare under penalty of perjury under the laws of the State of California that the foregoing compliance representations are true and correct.

Dated: May 8, 2026

Dylan Franciscus Rosario, Plaintiff In Pro Per